stage than the stage reached by the other sections of the national community, and whose status is regulated wholly or partially by their own customs or traditions or by special laws or regulations;

(b) members of *tribal or semi-tribal* populations in independent countries which are regarded as indigenous on account of their descent from the populations which inhabited the country, or a geographical region to which the country belongs, at the time of conquest or colonisation and which, irrespective of their legal status, live more in conformity with the social, economic and cultural institutions of that time than with the institutions of the nation to which they belong.

2. For the purposes of this Convention, *the term semi-tribal includes groups and persons who, although they are in the process of losing their tribal characteristics, are not yet integrated into the national community.*

3. The indigenous and other tribal or semi-tribal populations mentioned in paragraphs 1 and 2 of this Article are referred to hereinafter as 'the populations concerned' [emphases added].

A second Convention on Indigenous and Tribal Populations was adopted by the ILO in 1989, in which a similar approach to those who were the intended beneficiaries was taken, which is set out below[24]:

Article 1

1. This Convention applies to:

(a) *tribal peoples* in independent countries whose social, cultural and economic conditions distinguish them from other sections of the *national community,* and whose status is regulated wholly or partially by their own customs or traditions or by special laws or regulations;

(b) peoples in independent countries *who are regarded as indigenous* on account of their descent from the populations which inhabited the country, or a geographical region to which the country belongs, at the time of conquest or colonisation or the establishment of present state boundaries and who, irrespective of their legal status, retain some or all of their own social, economic, cultural and political institutions.

2. Self-identification as *indigenous or tribal* shall be regarded as a fundamental criterion for determining the groups to which the